ness. Northbound lake vessels shall not enter the canal when the cylinder is displayed at the top of the pole or when the red lights are displayed. Northbound lake vessels may enter the canal when the cylinder is not displayed or when the green lights are displayed. Southbound lake vessels will be held at the lock until northbound lake vessels or canal fleets shall have advanced far enough to pass the Ferry Street Bridge before meeting the southbound vessels. Southbound lake vessels leaving from any point in the canal south of the lock shall telephone the lock not less than 20 minutes before ready to leave and obtain permission from the lockmaster in charge to proceed. If the canal is occupied by a northbound lake vessel or canal fleet, the southbound vessel shall not leave its wharf until permission is given by the lockmaster in charge.

[Regs. Sept. 23, 1947, CE 800.21 (Black Rock Canal)—ENGWR] (40 Stat. 266; 33 U. S. C. 1)

[SEAL] H. B. LEWIS,
Brigadier General,
Acting The Adjutant General.

[F. R. Doc. 47-9425; Filed, Oct. 21, 1947; 8:56 a. m.]

TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 35—VETERANS REGULATIONS

EDUCATION OF VETERANS

§ 35.018 *Education of veterans,* paragraph (d) is amended to read as follows:

(d) From time to time the Administrator shall secure from the appropriate agency of each State a list of the educational and training institutions (including industrial establishments), within such jurisdiction, which are qualified and equipped to furnish education or training (including apprenticeship, refresher or retraining and institutional on-farm training), which institutions, together with such additional ones as may be recognized and approved by the Administrator, shall be deemed qualified and approved to furnish education or training to such persons as shall enroll under this part: *Provided,* That wherever there are established State apprenticeship agencies expressly charged by State laws to administer apprentice training, whenever possible, the Administrator shall utilize such existing facilities and services in training on the job when such training is of one year's duration or more.

(Pub. Law 377, 80th Cong.)

[SEAL] OMAR N. BRADLEY,
General, U. S. Army,
Administrator of Veterans Affairs.

SEPTEMBER 1, 1947.

[F. R. Doc. 47-9427; Filed, Oct. 21, 1947; 8:45 a. m.]

TITLE 45—PUBLIC WELFARE

Chapter II—Public Assistance, Federal Security Agency

PART 230—SUBSTANTIVE POLICIES: CIVILIAN WAR ASSISTANCE

ELIGIBILITY AND ASSISTANCE PROVIDED

1. Section 230.1 (12 F. R. 5597) is hereby amended to read as follows:

§ 230.1 *Eligibility and assistance provided.* For persons returned from abroad or evacuated. Such persons to be eligible, must be: (a) In need, (b) citizens of the United States or under 18 years of age and the child of a citizen, and (c) must have been stranded or interned and returned to the United States, or evacuated from any area under the direction of civilian or military authorities of the United States. Effective November 1, 1947, assistance available will consist of the following: In port cities transportation will be provided to all otherwise eligible repatriates in need of this assistance; for persons not locating in port cities, temporary maintenance may be given for a period not to exceed three days. Assistance may be in the form of money payments or in kind.

CROSS REFERENCE: See also 45 CFR 201.21 and 201.22.

Dated: October 13, 1947.

[SEAL] A. J. ALTMEYER,
Commissioner for Social Security.

Approved October 16, 1947.

OSCAR R. EWING,
Federal Security Administrator.

[F. R. Doc. 47-9428; Filed, Oct. 21, 1947; 8:57 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Subtitle A—Office of the Secretary of the Interior

[Order 2367]

PART 4—DELEGATIONS OF AUTHORITY

BUREAU OF LAND MANAGEMENT; DELEGATIONS TO THE DIRECTOR IN SPECIFIED MATTERS

Section 4.275 is amended by adding to paragraph (a) thereof the following subparagraphs:

§ 4.275 *Functions with respect to various statutes.* * * *

(60) Applications for temporary permits for rights-of-way for logging roads on the revested Oregon and California Railroad and the reconveyed Coos Bay Wagon Road grant lands, in Oregon, in accordance with 43 CFR 115.114 to 115.127, inclusive, and the issuance, modification, renewal, assignment or cancellation of such permits.

(61) Applications for grazing leases and crossing permits on the revested Oregon and California Railroad and the reconveyed Coos Bay Wagon Road grant lands, in Oregon, in accordance with 43 CFR 115.128 to 115.149, inclusive, and the issuance, modification, renewal, assignment or cancellation of such leases and permits.

(R. S. 161, 453, 2478; 5 U. S. C. 22, 43 U. S .C. 2, 1201; Reorganization Plan No. 3 of 1946, 43 CFR 4.250)

C. GERARD DAVIDSON,
Assistant Secretary of the Interior.

OCTOBER 10, 1947.

[F. R. Doc. 47-9412, Filed, Oct. 21, 1947; 8:46 a. m.]

Chapter I—Bureau of Land Management, Department of the Interior

PART 50—ORGANIZATION AND PROCEDURE

DELEGATION OF AUTHORITY

CROSS REFERENCE: For order affecting the list of delegations of authority contained in §§ 50.75 to 50.81, inclusive, see Part 4 of this title, *supra,* concerning application for temporary permits for rights-of-way for logging roads and applications for grazing leases and crossing permits on the revested Oregon and California Railroad and the reconveyed Coos Bay Wagon Road grant lands in Oregon.

Appendix—Public Land Orders

[Public Land Order 417]

OREGON

MODIFYING EXECUTIVE ORDERS NO. 8651 OF JANUARY 23, 1941, NO. 9000 OF DECEMBER 26, 1941, AND NO. 9042 OF JANUARY 26, 1942, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT

By virtue of the authority vested in the President, and pursuant to Executive Order No. 9337 of April 24, 1943 (8 F. R. 5516), it is ordered as follows:

Executive Orders No. 8651 of January 23, 1941 (6 F. R. 600), No. 9000 of December 26, 1941 (6 F. R. 6787), and No. 9042 of January 26, 1942 (7 F. R. 559), withdrawing public lands for the use of the War Department as an aerial bombing and gunnery range, for military purposes, and for aviation purposes, respectively, are hereby modified so as to permit the use of the lands covered by such orders for grazing purposes as part of a grazing district under the provisions of the act of June 28, 1934, as amended (48 Stat. 1269, 43 U. S. C. 315), on such terms and for such periods as may be agreed upon by the War Department and the Department of the Interior.

C. GERARD DAVIDSON,
Assistant Secretary of the Interior.

OCTOBER 14, 1947.

[F. R. Doc. 47-9413; Filed, Oct. 21, 1947; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Office of the Secretary

[50 CFR, Part 81]

PROTECTION OF MIGRATORY BIRDS; CERTAIN LANDS IN VICINITY OF SANIBEL NATIONAL WILDLIFE REFUGE

NOTICE OF INTENTION TO ADOPT REGULATION DESIGNATING AS CLOSED AREA

Pursuant to section 4 (a) of the Administrative Procedure Act, approved June 11, 1946 (Public Law 404, 79th Cong.), and the authority contained in section 3 of the Migratory Bird Treaty Act of July 3, 1918 (40 Stat. 755, 16 U. S. C. 704), as amended, notice is hereby given that the Secretary of the Interior intends to adopt a regulation designating as an area closed to the taking of migratory birds, at any time, certain lands and waters within, adjacent to, or in the vicinity of the Sanibel National Wildlife Refuge, Lee County, Florida.

The foregoing regulation is to be promulgated on November 1, 1947, or as soon thereafter as approved by the President, and to continue in effect thereafter until further notice.

Interested persons are hereby given an opportunity to present their views with reference to said proposed regulation by submitting data or arguments in writing to Albert M. Day, Director, Fish and Wildlife Service, Washington, D. C.

WILLIAM E. WARNE,
Assistant Secretary of the Interior.

OCTOBER 13, 1947.

[F. R. Doc. 47-9414; Filed, Oct. 21, 1947; 8:46 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

[29 CFR, Part 541]

DEFINITION OF CERTAIN TERMS

NOTICE OF HEARING ON PROPOSED AMENDMENTS

Notice of hearing on proposed amendments to Part 541 of regulations with respect to the definition of the terms "executive, administrative, professional, or local retailing capacity, or . . . outside salesman" as they affect employees covered by provisions of Fair Labor Standards Act.

Whereas, section 13 (a) (1) of the Fair Labor Standards Act, as amended, provides that the provisions of section 6 and section 7 of the act shall not apply to any employee "employed in a bona fide executive, administrative, professional, or local retailing capacity, or in the capacity of outside salesman (as such terms are defined and delimited by regulations of the Administrator)"; and

Whereas, the Administrator of the Wage and Hour Division, on October 15, 1940, issued Part 541 of Chapter V, Title 29, Code of Federal Regulations, as amended (5 F. R. 4077), entitled "Regulations Defining and Delimiting the Terms Any Employee Employed in a Bona Fide Executive, Administrative, Professional, or Local Retailing Capacity, or in the Capacity of Outside Salesman" pursuant to section 13 (a) (1) of the Fair Labor Standards Act of 1938 (52 Stat. 1060); and

Whereas, it appears advisable, in the light of the experience of the Divisions in the application of these regulations and because of changes in economic conditions which have taken place since their issuance, to consider amendments to the regulations which will more effectively carry out the purposes of the exemptions provided in section 13 (a) (1); and

Whereas, a petition has been filed by the United Electrical Radio & Machine Workers of America pursuant to § 541.6 of the regulations, for amendment of §§ 541.1, 541.2 and 541.3 of the regulations to require that an employee must be compensated for his services on a salary or fee basis at a rate of not less than $500 per month (exclusive of board, lodging and other facilities) in order to qualify as an executive, administrative, or professional employee;

Now, therefore, notice is hereby given of public hearing to be held beginning on Tuesday, December 2, 1947 at 10 A. M. in the Departmental Auditorium, Constitution Avenue, between 12th and 14th Streets, N. W., Washington, D. C., before a representative to be designated by the Administrator, at which interested persons will be heard on the following questions:

1. What, if any, changes should be made in the provisions contained in §§ 541.1 (e), 541.2 (a) and 541.3 (b) of the regulations with respect to salary criteria for exemption as executive, administrative, and professional employees?

2. Should the following proposed amendments to Regulations Part 541 be adopted?

a. Amend § 541.1 (f) of the regulations to read as follows:

(f) Who does not devote more than 8 hours in the workweek to work which is not an integral part of the functions described in paragraphs (a) through (d) of this section: *Provided*, That this paragraph shall not apply in the case of an employee who is in sole charge of an independent establishment or a physically separated branch establishment, or who is an officer and shareholder owning at least 20 percent of the outstanding shares of the enterprise in which he is employed.

b. Amend § 541.2 by deleting § 541.2 (b) (4) which reads:

(4) Who is engaged in transporting goods or passengers for hire and who performs, under only general supervision, responsible outside work of a specialized or technical nature requiring special training, experience, or knowledge, and whose duties require the exercise of discretion and independent judgment.

c. Amend § 541.2 (b) (2) to read as follows:

(2) Who performs under only general supervision, responsible office or nonmanual field work, directly related to management policies or general business operations, along specialized or technical lines requiring special training, experience, or knowledge, and which requires the exercise of discretion and independent judgment; or

d. Amend § 541.2 by adding a new paragraph (c) as follows:

(c) And who does not devote more than 8 hours in the workweek to work which is not an integral part of the functions described in paragraphs (b) (1), (b) (2) and b (3) of this section.

e. Amend § 541.3 (a) (4) to read as follows:

(4) Who does not devote more than 8 hours in the workweek to work which is not an integral part of the functions described in paragraphs (a) (1), (2), (3) and (5) (i) or (ii) of this section.

f. Amend § 541.4 (b) to read as follows:

(b) Who does not devote more than 8 hours in the workweek to work which is not described in paragraphs (a) (1) or (a) (2) of this section.

g. Amend § 541.5 (a) (2) to read as follows:

(2) Obtaining orders or contracts for services or for the use of facilities for which a consideration will be paid by the client or customer, and

h. Amend § 541.5 (b) to read as follows:

(b) Whose hours of work of a nature other than that described in paragraphs (a) (1) or (a) (2) of this section, do not exceed 8 hours in the workweek; *Provided*, That work performed incidental to and in conjunction with the employee's own outside sales or solicitations, including incidental deliveries and collections, shall not be included in computing the 8 hours.

3. What, if any, other amendments should be made in Regulations, Part 541?

Interested persons are invited to present evidence as to the need for revision or definition of any of the terms used in the regulations, particularly with respect to the following:

1. "Primary duty" as used in § 541.1 (a).

2. "A customarily recognized department or subdivision thereof" as used in § 541.1 (a).

3. "Sole charge" as used in § 541.1 (f).

4. "A physically separated branch establishment" as used in § 541.1 (f).

5. "Salary basis" and "salary or fee basis" as used in §§ 541.1 (e), 541.2 (a) and 541.3 (b).

6. "General business operations" as used in §§ 541.2 (b) (2) and 541.2 (b) (3).